



Police File # (if known):

Court Location:

PROVINCIAL COURT OF NEWFOUNDLAND AND LABRADOR

BETWEEN _____ *Applicant* _____
D.O.B. (YYYY/MM/DD)

AND _____ *Respondent* _____
D.O.B. (YYYY/MM/DD)

APPLICATION FOR EMERGENCY PROTECTION ORDER

1. I am requesting an Emergency Protection Order against the Respondent in accordance with Section 5 of the *Family Violence Protection Act*. I understand that any information supplied in support of my application for an Emergency Protection Order may be used to form the basis of an investigation or as evidence in this or any other unrelated court proceeding. I am an adult person and I am seeking this Order for myself and the following minor child(ren) who ordinarily or periodically reside with me.

NAME	D.O.B.	NAME	D.O.B.
NAME	D.O.B.	NAME	D.O.B.
NAME	D.O.B.	NAME	D.O.B.

2. (Complete if applicable.) I have a lawyer for the purpose of this application.
My lawyer’s name is _____
Address: _____ Telephone Number: _____

3. (Complete if applicable.) I am consenting to this application being submitted on my behalf by a lawyer, police officer, or designated person, namely _____
Address: _____ Profession: _____

4. I received help to complete this application from _____
Address: _____ Telephone Number: _____

Dated this _____ day of _____, 20____. _____
Signature of Applicant

Note: This Application must be accompanied by a sworn statement in Form 003 setting out your reasons for needing an Emergency Protection Order.

Applicant’s Address and Phone # for Service	Respondent’s Address and Phone # for Service
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

For Official Use Only	
Order Granted: ☐ Yes ☐ No	
Signature of Judge	Date

APPENDIX “A”

(To accompany Form 002, Emergency Protection Order)

POTENTIAL CONDITIONS OF ORDER

- ☐The Applicant shall have exclusive occupation of the residence located at _____ for _____ days from the date of this Order;
- ☐Where the Respondent fails to voluntarily vacate the residence immediately, a police officer shall remove the Respondent from the residence and may use as much force as is reasonably necessary to effect such removal;
- ☐A police officer shall accompany _____ to the residence within _____ hours for the purpose of supervising the removal of personal belongings of the Respondent;
- ☐The Respondent shall refrain from communicating, either directly or indirectly, with the Applicant or _____;
- ☐The Respondent shall refrain from attending at or near, or entering a place that is attended regularly by the Applicant or _____, including a residence, property, business, school or place of employment;
- ☐For the duration of this Order, or until _____, the Applicant shall have possession or control of the following personal property _____

- ☐The Respondent shall not take, convert, damage or otherwise deal with property in which the Applicant has an interest;
- ☐The Respondent shall refrain from committing any further acts of family violence, as defined by Section 3 of the *Family Violence Protection Act*;
- ☐The name or address of the Applicant or a child named in this Order, or other information that may identify the Applicant or child, shall not be published in any manner;
- ☐The Respondent is directed to deliver up to a police officer, subject to any further Order being made under the *Criminal Code of Canada*, the *Firearms Act* (Canada) or another Act,

(i)any weapon that the Respondent owns, possesses or controls; and

(ii)any document that authorizes the Respondent to own, possess or control a weapon referred to above.

The weapons shall be delivered forthwith or within _____ and upon failure to comply with this Order a police officer may, for the purpose of seizing the items, enter and search a place where the police officer has reason to believe the items are located with the assistance and force that are reasonable in the circumstances;

- ☐The Respondent is directed to make the rent or mortgage payments arising in respect of the residence;
- ☐The Respondent shall refrain from terminating the basic services of utilities servicing the residence;
- ☐For the duration of this Order, or until it is terminated or set aside, the care and custody of the child(ren) named in this Order is awarded to the Applicant or to _____.
- ☐*(Any other provisions that the Court considers necessary to ensure the immediate protection of the Applicant or another person or property that is at risk of harm or damage.)*

